

[3] DEFENDANT’S MOTION TO STAY PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is CONTINUED to September 9, 2026, at 8:30 a.m. in Dept. B.

Defendant Auberge Resorts LLC ("Auberge") moves, for an order staying the case pending resolution of the arbitration in the above-entitled action filed by Plaintiff Maudie Pollastrini ("Plaintiff").

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Nai Saechao v. Wal-Mart Associates, Inc

26CV001131

[1] DEFENDANT’S DEMURRER TO PLAINTIFF’S COMPLAINT

[2] DEFENDANTS’ MOTION TO STRIKE PORTIONS OF PLAINTIFF’S COMPLAINT

TENTATIVE RULING: Both matters are CONTINUED to September 23, 2026 at 8:30 a.m. in Dept. B to allow the moving party to provide a Local Rule compliant notice. The moving party failed to include, in either notices of the demurrer or motion, proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. The moving party is directed to (1) prepare an Amended Notice for both matters, which contains the continued hearing date and notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of such service pursuant to Rules of Court, rule 3.1300, subd. (c).

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In The Matter of Frances Peralta Carrillo

26CV001431

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Jason Moulton et al v. Bowman Construction and Development, Inc

26CV001527

VERIFIED PETITION FOR RELEASE OF INVALID MECHANICS’ LIEN

TENTATIVE RULING: The matter is CONTINUED to September 24, 2026, at 8:30 a.m. in Dept. B to allow Petitioner to remedy the following items.

Should Petitioner fail to properly cure the below defects, the Court will be forced to deny the Petition without prejudice, as September 24, 2026 is the last court day before the 60th day after the filing of the petition. (See Civ. Code § 8486, subd. (a) [“The court may continue the

hearing only on a showing of good cause, but in any event the court shall rule and make any necessary orders on the petition not later than 60 days after the filing of the petition.”].)

1. Notice of Petition on Respondent

The only Proof of Service on file is for service of Notice of Entry of the 8/4/2026 *Ex Parte* Order, which simply set the Petition for hearing and set a briefing schedule. (See 8/13/26 Notice of Entry of Order.) The 8/4/26 *Ex Parte* Order also directed Petitioners to “promptly serve a copy of this Order, *together with the filed Verified Petition and supporting papers*, upon Respondent if they have not already done so, and shall thereafter file proof of service.” (8/4/26 Order, p. 2, ¶ 4. Emphasis added.)

There is no Proof of Service of the Verified Petition and supporting papers on file. Moreover, the 8/13/26 Proof of Service of the Notice of Entry of Order shows service by electronic means. However, service in these types of actions must be in the same manner as service of summons or by certified or registered mail, postage prepaid, return receipt requested. (See Civ. Code, § 8486, subd. (b).) Electronic means is, therefore, not proper.

2. Contents of Petition

The Petition does not contain information pertaining to all items set out under Civil Code section 8484, subdivisions (a) through (h). Specifically, the Petition does not address: “(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired,” “(g) Whether an action to enforce the lien is pending,” or “(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.”

The Court notes that the Petition is based on allegations that the lien is defective for failing to have been timely recorded, rather than on allegations that the lien claimant has not commenced an action to enforce the lien within 90 days after recordation. A petition for release of a mechanics lien under sections 8480 *et seq.*, upon which the instant Petition is brought, only covers the latter. Thus, to the extent Petitioner cannot establish all items set out under Civil Code section 8484, subdivisions (e), (g), and (h), the Court will be compelled to deny the Petition.